

ALITO, J., dissenting

dorse Proposed Equal Rights Amendment, N. Y. Times, Sept. 16, 1921, p. 10.

Similar terms were used in the precursor to the Equal Pay Act. Introduced in 1944 by Congresswoman Winifred C. Stanley, it proclaimed that “[d]iscrimination against employees, in rates of compensation paid, *on account of sex*” was “contrary to the public interest.” H. R. 5056, 78th Cong., 2d Sess.

In 1952, the new Constitution for Puerto Rico, which was approved by Congress, 66 Stat. 327, prohibited all “discrimination . . . *on account of . . . sex*,” Art. II, Bill of Rights § 1 (emphasis added), and in the landmark Immigration and Nationality Act of 1952, Congress outlawed discrimination in naturalization “*because of . . . sex*.” 8 U. S. C. § 1422 (emphasis added).

In 1958, the International Labour Organisation, a United Nations agency of which the United States is a member, recommended that nations bar employment discrimination “made *on the basis of . . . sex*.” Convention (No. 111) Concerning Discrimination in Respect of Employment and Occupation, Art. 1, § 1(a), June 25, 1958, 362 U. N. T. S. 32 (emphasis added).

In 1961, President Kennedy ordered the Civil Service Commission to review and modify personnel policies “to assure that selection for any career position is hereafter made solely on the basis of individual merit and fitness, *without regard to sex*.”²¹ He concurrently established a “Commission on the Status of Women” and directed it to recommend policies “for overcoming discriminations in government and private employment *on the basis of sex*.” Exec. Order No. 10980, 3 CFR 138 (1961 Supp.) (emphasis added).

²¹ J. Kennedy, Statement by the President on the Establishment of the President’s Commission on the Status of Women 3 (Dec. 14, 1961) (emphasis added), <https://www.jfklibrary.org/asset-viewer/archives/JFKPOF/093/JFKPOF-093-004>.